

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: Switzerland

Organization or entity responsible for the preparation of the report: State Secretariat for Education, Research and Innovation SERI

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**1. Ratification of the Convention²**

Is your country a State Party to the Convention?

☐ Yes

☒ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☒ No, not considering ratification in the near future. Please explain why:

Switzerland does not aim at the ratification of this convention since its content overlaps with other acts that have been ratified by Switzerland (essentially the UN Convention on the Rights of Children and the UN Convention on the Rights of Persons with Disabilities). In this context the ratification would not bring an added value for Switzerland in terms of fighting discrimination.

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

See above mentioned reasons.

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☒ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

Art. 8 of the Federal Constitution of the Swiss Confederation (<https://www.admin.ch/opc/en/classified-compilation/19995395/index.html>) states that no person may be discriminated against. Art. 2 para. 3 further states that the Swiss Confederation shall ensure the greatest possible equality of opportunity among its citizens.

The Federal Act on the Elimination of Discrimination against People with Disabilities (Disability Discrimination Act, <https://www.admin.ch/opc/en/classified-compilation/20002658/index.html>, Art. 3 let. f) explicitly also applies to education.

La LEg s'applique uniquement aux rapports de travail et non à l'éducation

Besides the general constitutional mandate by Art. 2 and 8 of the Federal Constitution of the Swiss Confederation (see above), the educational articles in the Federal Constitution provide the constitutional basis for formal equality of opportunity at the level of the education system:

- [Art. 19](#) of the Federal Constitution states that the right to an adequate and free basic education is guaranteed
- [Art. 61a](#) states that the Conference and the Cantons shall, within the scope of their powers, jointly ensure the high quality and accessibility of the Swiss Education Area.

The Federal Confederation undertakes efforts to reduce discrimination in all areas with federal competence.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

In Switzerland, education in general falls in the responsibility of the cantons, except for the two Federal Institute of Technology. The cantons and/or education institutions can individually decide on any programmes and policies. The role of the Confederation is to provide favourable framework conditions regarding elimination of discrimination. In this context the Confederation provides project contributions for specific measures of the Cantons and/or educational institutions that aim at inclusion/equity in education (examples: Federal Act on Vocational and Professional Education and Training, <https://www.admin.ch/opc/en/classified-compilation/20001860/index.html>, Art. 55 let. a, e, f; Federal Act on Funding and Coordination of the Swiss Higher Education Sector, <https://www.admin.ch/opc/en/classified-compilation/20070429/index.html>, Art. 59).

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

This corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☐ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☐ Combatting discrimination in terms of curriculum
- ☐ Other:

As mentioned above, the cantons have a high autonomy regarding education and they have their own laws and regulations. The answer above refers to the federal government.

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

See explanations above in chapter I 3.

- 1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☐ Regulations ensure equal access to all levels and types of education
- ☐ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

See explanations above in chapter I 3.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

⁶ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|---|--|
| ☒ Providing financial incentives and fellowships | ☐ Providing auxiliary assistance |
| ☐ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☒ Adapting curricula and methods |
| ☐ Training teachers on inclusive education | ☐ Providing language classes to newcomers (e.g. refugees) |
| ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Eliminating administrative barriers to education ⁷ |
| ☐ Providing re-entry programmes for young mothers | ☒ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☐ Valuing diversity in schools |
| ☐ Other: | ☐ Combatting stereotyping and stigmatisation |

The answer above refers to the federal government. The cantons, municipalities and the private sector take individual measures and actions in this respect. The national authorities are competent for some coordinating tasks.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

There are individual measures of the public and the private sector to promote inclusion and empowerment of girls and women in and through education. The Confederation plays a subsidiary role. An example in the field of higher education is the national programme on “Equal Opportunities and University Development” (<https://www.swissuniversities.ch/en/topics/equal-opportunities/p-7-equal-opportunity-and-university-development>). The action plans and cooperation projects of the universities are coordinated through this programme.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child’s right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

Swiss civil code, Art. 94. To be able to marry, the prospective spouses must have reached 18 years of age and have the capacity of judgement.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☒ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

The cantons set the age at which children start pre-primary education, which in most cases is four years old.

☒ Pre-primary education is free of charge for all: Please provide the duration:

The cantons set the duration of the pre-primary education, which in most cases covers two years (kindergarten).

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Federal Constitution of the Swiss Confederation, Art. 62
(<https://www.admin.ch/opc/en/classified-compilation/19995395/index.html>)

The cantons are responsible for the system of school education.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

⁸ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Compulsory education lasts for eleven years and is free for all children. It comprises two levels: primary and lower secondary. The first primary years are either two years of kindergarten or a first learning cycle.

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Primary school lasts eight years; seven in the canton of Ticino. It is free of charge to all children.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

• Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Lower secondary school is free of charge (Federal Constitution of the Swiss Confederation [Art. 19](#)).

Due to the diversity of the offers in the upper secondary level it is not possible to make general statements on the direct and indirect costs. Furthermore the cantons have a high autonomy regarding general upper-secondary education (Federal Act on Vocational and Professional Education and Training, especially [Art 53](#)).

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes ☒ No (secondary I is compulsory, secondary II not)

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Upper secondary level includes vocational education and training and schools offering a general education such as baccalaureate schools and upper secondary specialised schools. Young people have to decide whether to do an apprenticeship (VET) or attend a baccalaureate school or an upper secondary specialised school. Upper secondary level lasts from two to four years, depending on the type of the education.

The Confederation, the cantons and the professional organisations (social partners, trade associations, etc.) share the responsibility in the vocational upper secondary level and hence also its financing (Federal Act on Vocational and Professional Education and Training Art. 1). Over 90% of young people achieve an upper secondary degree before the age of 25. The increase of this quote up to 95% is a common educational policy objective. The Confederation provides lump-sum subsidies as well as project-related subsidies with the aim of providing a high qualitative vocational upper-secondary education and a wide range of options.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

☒ Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

The labour law fixes a minimum age of employment by taking into account the age of the completion of the compulsory education (labour law, <https://www.admin.ch/opc/de/classified-compilation/19640049/index.html>, Art. 30). The cantons can make exceptions from the minimum age in cases where young people haven't reached the minimum age of employment after the compulsory school.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☐ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☐ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training
- ☐ Other:

Note: Regarding VET please consider the chapter on secondary education.

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

Art. 8 of the Federal Constitution of the Swiss Confederation (<https://www.admin.ch/opc/en/classified-compilation/19995395/index.html>) states that no person may be discriminated against. Especially also in education, men and women shall have equal rights. The law shall provide for the elimination of inequalities that affect persons with disabilities. Art. 2 para. 3 of the Federal Constitution of the Swiss Confederation further states that the Swiss Confederation shall ensure the greatest possible equality of opportunity among its citizens.

In Switzerland, education in general and hence also higher education is a matter of cantonal (and not national) legislation. The national authorities are competent for the two national universities (ETH Zurich and EPF Lausanne) as well as for some coordinating tasks. In addition, higher education institutions are autonomous and they have their own laws and regulations.

In the Federal Act on Funding and Coordination of the Swiss Higher Education Sector (Higher Education Act, HEdA; <https://www.admin.ch/opc/en/classified-compilation/20070429/index.html>), there are two paragraphs which address equal opportunities and true gender parity (requirement for accreditation (art. 30) and one of the fields in which contributions for projects are paid (art. 59)).

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

The more general Federal Act on the Elimination of Discrimination against People with Disabilities (Disability Discrimination Act, DDA; <https://www.admin.ch/opc/en/classified-compilation/20002658/index.html>) explicitly also applies to Education (art. 3, let. f).

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☐ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

In Switzerland, tuition fees are generally rather low. In addition, students can apply for public grants or loans if their financial situation is poor. Grants and loans are awarded by cantonal authorities.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education

- ☒ Provision of literacy programmes
- ☐ Provision of appropriate learning and life-skills programmes
- ☐ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

Participation in adult learning is very high in Switzerland. Special measures focus therefore mostly on persons without an upper secondary qualification or lacking literacy, numeracy and digital skills.

Professional qualification for adults represents one of the priorities of the education policy in Switzerland. In this context the federal government runs a campaign to promote the different possibilities of achieving an upper secondary education. The Federal laws offer flexibility in this respect. The cantons are responsible for the implementation of the different learning pathways.

Regarding literacy the federal government supports cantonal programs that ensure accessibility for adults in reading, writing, basic mathematics and digital literacy. It also supports a campaign to raise awareness and promote courses and other learning offers (<https://www.besser-jetzt.ch/kampagne.cfm>). It also offers subsidies for players of the public and the private sector that want to provide literacy programmes to their staff.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☐ Establishment of minimum norms and standards in education
- ☐ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☐ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

[Art. 61a](#) of the Swiss Constitution states that the Confederation and the Cantons shall, within the scope of their powers, jointly ensure the high quality and accessibility of the Swiss Education Area. Each different kind of educational institution is submitted to the same quality criteria.

The Federal Act on Vocational and Professional Education and Training states that disadvantaged regions and groups may be helped through specific initiative ([Art. 7](#)), it sets the frame for the improvement of quality ([Art. 8](#)) and encourages the permeability of the educational system ([Art. 9](#)). The Federal Act on continuing education stipulates the quality development ([Art. 6](#)) and the improvement of equality of opportunity for women and men, respond to the needs of people with disabilities, support the integration of foreigners and the return to working life ([Art. 8](#)).

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

Education and training for the teaching profession falls in the responsibility of the cantons. The federal government defines the minimum requirements. For the same reason it is not possible to make any general statements regarding the average salaries.

The federal government has established a federal institute for Vocational Education and Training (SFIVET). It is the competence centre of the Confederation for teaching and research. Its core activities include among others the provision of basic and continuing training to VET and PET professionals (in particular examiners).

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

- ☒ Curriculum includes human rights education
- ☐ Educational and/or extracurricular activities are organized on human rights education
- ☐ Other:

Regarding the compulsory level the responsibility falls to the cantons. The Confederation issues core syllabuses regarding curricula for the upper-secondary education. Human rights and fundamental freedoms are part of the general education (<https://www.sbf.admin.ch/sbf/de/home/bildung/berufliche-grundbildung/allgemeinbildung.html>).

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☐ No ☒

- Please provide a brief description:

There is no general regulatory framework but there are provisions depending on the level of education. Private schools that cover compulsory education are under State supervision and have to be approved. Regarding the further levels of education, private schools that issue recognized diplomas or certificates have to fulfil certain conditions. Private higher education institutions have to be accredited if they want to be designated as a university or a university of applied sciences.

¹²

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☐ No ☒

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

There are no general laws or regulations (except the Federal Constitution) but it is to the Confederation and the Cantons to set the right incentives for a good balance between the offer of public and private schools. The quality of education in the public schools in Switzerland is very high. For the private schools there is also a quality assurance system.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☒

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation protect the right to education of national minorities
- ☒ Legislation or regulations guarantee the right of national minorities to study in their mother tongue

☐ Curriculum is adapted to national minority needs

☐ Teachers are trained to adapt to national minority needs

☐ Other:

- Please provide a brief description of the provisions:

See the general remarks in part I of this questionnaire.

Regarding the right of national minorities to study in the mother tongue, there are four official languages in Switzerland. These languages are granted full constitutional rights. Furthermore, Switzerland has defined Romansh and Italian as minority languages under the European Charter for Regional or Minority Languages. The general part of the Charter also applies also to Yenish, Yiddish and Frankoprovençal.

In the context of language law, the constitutional principle of territoriality is of particular importance. The aim of the territoriality principle is to guarantee the traditional linguistic

composition of the country. It is intended to guarantee the protection of traditional linguistic minorities in all part of public life, including education. The cantons bear the main responsibility for a fair linguistic order. They are responsible for reconciling the freedom of language and the principle of territoriality, to harmonise and bring them into a meaningful balance.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

See above.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to "ensure equal access to all levels of education and vocational training for the vulnerable", including "children in vulnerable situations", and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

See remarks in Part I of this questionnaire. The Swiss Constitution builds again the framework in this respect. Not only migrants with a residence permit have the right to primary education, but also foreigners of school age who are staying in Switzerland irregularly. The right to primary education for asylum seekers of school age who are accommodated in a federal centre during their asylum procedure is also provided for explicitly in the Asylum Act ([Art. 80](#)).

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ Inclusion in mainstream education
- ☐ Provision of language courses
- ☐ Specific training for educational staff
- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☒ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

At the level of the confederation the inclusion in mainstream education of the refugees' and migrants' is guaranteed. There is also a specific national programme, implemented by the cantons, that aims at the inclusion of refugees' in a vocational education and training.

The cantons can provide further measures such as language courses, specific training for educational staff, measures aiming at the integration to the labour market, etc.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Switzerland has not ratified the Convention hence these questions cannot be answered.

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other: